

25PSCV01214 25PSCV01214

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Case Number: 25PSCV01214 Hearing Date: July 20, 2026 Dept: H

Patel, et al. v. State of California, et al., Case No. 25PSCV01214 (Related to Case No. 25PSCV01549)

ORDER ON MOTION TO CONSOLIDATE

Defendant Thomas Flores' Motion to Consolidate is DENIED.

Background

Case No. 25PSCV01214

Plaintiffs Mallika Patel ("M. Patel") and Karan Patel ("K. Patel") (together, "the Patels") sustained injuries and damages in a July 18, 2024 motor vehicle accident on the southbound Interstate 605.

On April 3, 2025, the Patels filed a complaint, asserting causes of action against

The People of the State of California, acting by and through the Department of

Transportation (erroneously sued as "State of California") ("State of California"),

Thomas Flores ("Flores") and Does 1-100 for: (1) Dangerous Condition of Public Property, (2) Negligence, and (3) Loss of Consortium.

On February 4, 2026, Case Nos. 25PSCV01214 and 25PSCV01549 were deemed related; Case No. 25PSCV01214 was designated as the lead case.

On May 28, 2026, K. Patel dismissed the third cause of action, without prejudice.

The Final Status Conference is set for January 29, 2027. Trial is set for February 9, 2027.

Case No. 25PSCV01549

Plaintiff Rogelio Gonzalez ("Gonzalez") sustained injuries and damages in a July 18, 2024 motor vehicle accident on the southbound Interstate 605.

On April 30, 2025, Gonzalez filed a complaint, asserting causes of action against The Flores and Does 1-50 for: (1) Motor Vehicle and (2) General Negligence.

On December 3, 2025, Flores filed a cross-complaint, asserting causes of action against M. Patel and Roes 1-100 for: (1) Indemnity, (2) Apportionment of Fault, (3) Comparative Fault, and (4) Declaratory Relief.

On February 4, 2026, Case Nos. 25PSCV01214 and 25PSCV01549 were deemed related; Case No. 25PSCV01214 was designated as the lead case.

The Final Status Conference is set for September 24, 2026. Trial is set for October 12, 2026.

Legal Standard

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

"There are two types of consolidation: a complete consolidation resulting in a single action, and a consolidation of separate actions for trial. Under the former procedure, which may be utilized where the parties are identical and the causes could have been joined, the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered. In a consolidation for trial, the pleadings, verdicts, findings and judgments are kept separate; the actions are simply tried together for the sake of convenience and judicial economy." (Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 1396 [citation omitted].)

"(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated." (Cal. Rules Court, rule 3.350(a)(1).)

"(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion." (Cal. Rules Court, rule 3.350(b).)

Discussion

Flores moves the Court for an order consolidating Case Nos. 25PSCV01214 (the "Patel Case") and 25PSCV01549 (the "Gonzalez Case") for all purposes and designating the Patel Case as the lead case.

Procedural Deficiencies

At the outset, the Court notes that Flores' motion fails to comply with California Rules of Court Rule 3.350(a)(1)(C) [see above], in that the notice of motion to consolidate was not filed in Case No. 25PSCV01549. Additionally, the notice of motion fails to comply with subdivision (1)(B). Flores' counsel is admonished in this regard.

Merits

Flores seeks consolidation of the aforesaid cases on the basis that they both arise from the same July 18, 2024 motor vehicle accident. (Korff Decl., ¶ 3, Exhs. 1 and 2). He asserts that both cases involve him, have similar or the same witnesses and have overlapping issues of liability, causation and damages.

The Patels and the State of California separately oppose consolidation. The Patels describe the Patel Case as "a complex action against the State of California for a dangerous condition of public property, brought by a plaintiff who suffered a permanent spinal cord injury" and describe the Gonzalez Case as a "straightforward motor-vehicle negligence action against Flores." (Patel Opp., 1:25-28).

The Court determines that the aforesaid cases are not so similar as to warrant consolidation, for the reasons articulated by the Patels and the State of California. The Court also agrees with the State of California's position that consolidation at trial could create a conflict between The Patels and Gonzalez, inasmuch as the Patels, in seeking to place at least some fault with the State of California, could undermine Gonzalez's case against Flores. The motion is denied.